IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-II)
IN
COMPANY APPLICATION NO. – C.A.(CAA)-67/ND/2023

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

TECHPARK MAINTENANCE SERVICES PRIVATE LIMITED (TPMS)
...Applicant/Demerged Company
AND
HALWASIYA ESTATES LIMITED (HEL)
...Applicant/Transferor Company No. 1
AND
WELLDONE TECHNOLOGY PARKS DEVELOPMENT PRIVATE LIMITED (WTPL)
...Applicant/Transferor Company No. 2
AND
G. R. MAINTENANCE AND SERVICES LIMITED (GRMS)
...Applicant/Transferee Company
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order delivered on 22.03.2024

Under Section: 230 to 232 of the Companies Act, 2013

CORAM:

SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH, HON'BLE MEMBER (T)

PRESENT:

For the Applicant : CS Mr. Ashok Kumar Verma, CS Jitender

ORDER

The present petition has been preferred jointly by **Techpark Maintenance Services Private Limited** (hereinafter referred to as "Applicant Company/Demerged Company"), **Halwasiya Estates Limited** (hereinafter referred to as "Applicant/Transferor Company No. 1"), **Welldone Technology Parks Development Private Limited** (hereinafter referred to as "Applicant/ Transferor Company No.3"), **G. R. Maintenance And Services Limited** (hereinafter referred to as "Applicant/Transferee Company") seeking the following reliefs:-

> *"a. Dispense with the requirement of convening meetings of Shareholders, Secured Creditors and Unsecured Creditors of the Demerged Company. Transferor Companies No. 1 and 2 and of the Transferee/Resulting Company.*
>
> *b. Direct service of notice of the present Application on (a) the Central Government through the office of the Regional Director, Northern Region. Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, Delhi and Haryana, New Delhi: (c) The Official Liquidator; and (d) the Income Tax Department.*
>
> *c. Pass such other/further order(s) as this Hon'ble Tribunal, may deem fit and proper."*

2. **TECHPARK MAINTENANCE SERVICES PRIVATE LIMITED** having CIN U74900DL2008PTC401086, is a private limited company, incorporated

on 04.03.2008 under the Companies Act, 1956. The Registered Office of the Demerged Company is situated at Sanskrit Bhawan A-10 Qutab Institutional Area, New Delhi, India, 110016. The Authorised Share Capital of the Company is Rs. 51,00,000/- and its Paid-up Share Capital is Rs. 51,00,000/-

3. **HALWASIYA ESTATES LIMITED** having CIN U70102DL2015PLC288777 is a public limited company, incorporated on 22.12.2015 under the Companies Act, 2013. The Registered Office of Petitioner/Transferor Company No. 1 is situated at Sanskrit Bhawan A-10, Qutub Institutional Area, Aruna Asa, F Ali Marg, South Delhi, New Delhi, India, 110067. The Authorised Share Capital of the Company is Rs. 6,00,000/- and its Paid-up Share Capital is Rs. 6,00,000/-.

4. **WELLDONE TECHNOLOGY PARKS DEVELOPMENT PRIVATE LIMITED** having CIN U25201DL2005PTC344618, is a private limited company, incorporated on 30.12.2005 under the Companies Act, 1956. The registered office of Transferor Company No. 2 is situated at A-10, G/F, Qutub Institutional Area, Sanskrit Bhawan, Aruna Asaf Ali Marg, New Delhi, India, 110067. The Authorised Share Capital of the Company is Rs.5,00,000/- and its Paid-up Share Capital is Rs. 5,00,000/-.

5. **G.R. MAINTENANCE AND SERVICES** LIMITED having CIN U45201DL2000PLC402159, is a public limited company, incorporated on 25/01/2000 under the Companies Act, 1956. The registered office of Transferee Company is situated at Sanskrit Bhawan A-10 Qutab Institutional Area, New Delhi, New Delhi, Delhi, India, 110016. The Authorised Share Capital of the Company is Rs. 1,00,00,000 /- and its Paid-up Share Capital

is Rs. 76,00,000/-.

6. The present Application has been preferred by the 'Demerged Company', 'Transferor Company No. 1' and 'Transferor Company No. 2' and 'Transferee Company' (hereinafter referred to as the **'Applicant Companies'**). The Registered offices of all the Applicants Companies being in Delhi, they are amenable to the territorial jurisdiction of this Bench.

7. The appointed date of the Scheme is 01.04.2023 as defined in Part-I Clause 1.1.2 of the Scheme of Amalgamation.

8. The rationale of the proposed amalgamation Scheme, as espoused by the Applicants read thus:

> *"The proposed arrangement of demerger of demerged undertaking in transferee Company and amalgamation of the Transferor Companies with the Transferee Company would result in business synergy, consolidation of Group Companies and pooling of their resources into a single entity. Greater integration, greater financial strength and flexibility for the amalgamated entity, would result in maximizing overall shareholder value and will improve the competitive position of the combined entity.*
>
> *The proposed arrangement would result in greater efficiency of cash management of the combined entity, and unfettered access to cash flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities, to maximize shareholder value.*
>
> *(iii) The proposed arrangement would result in improved organizational capability and leadership, arising from the pooling of human capital who have the diverse skills, talent and*

vast experience to compete successfully in an increasingly competitive industry.

(iv) The proposed arrangement would result in greater access by the amalgamated company and <!emerged undertaking to different market segments in the conduct of its business.

(v) The consolidation of operations of the Demerged Undertaking, Transferor Companies and Transferee Company by way of scheme of demerger and amalgamation will lead to a more efficient utilization of capital, administrative and operational, rationalization and promote organizational efficiencies.

(vi) The proposed arrangement will prevent cost duplication that can erode financial efficiencies of the holding structure and the resultant operations will be more cost-efficient with the achievement of greater economies of scale, reduction in overheads and improvement in various other operating parameters.

(vii) The proposed arrangement will result in the formation of a stronger company with a larger capital and asset base and enable the combined business to be pursued more conveniently and advantageously. Post the arrangement, the Transferee Company will enjoy large net worth and financial resources which will be utilized to enhance the business.

(viii) The proposed arrangement would result in achieving economies of scale and will have beneficial results for the amalgamating companies, demerged Company their stakeholders and all concerned."

9. The applicant companies have furnished the following documents: - Proposed Scheme of Amalgamation (Annexure A-6 of the application).

i. Master Data along with Memorandum and Articles of Association of Demerged Company, Transferor Company No. 1, Transferor Company No. 2 and Transferee Company (Annexures A-1/1, A-2/1, A-3/1, A-4/1 respectively of the application).

ii. List of Equity Shareholders of Demerged Company as on 31.05.2023, along with Consent Affidavits (Annexure A-1/5 of the application).

iii. List of Equity Shareholders of Transferor Company No. 1 as on 31.05.2023, along with Consent Affidavits (Annexure A-2/5 of the application).

iv. List of Equity Shareholders of Transferor Company No. 2 as on 31.05.2023, along with Consent Affidavits (Annexure A-3/5 of the application).

v. List of Equity Shareholders of Transferee Company as on 31.05.2023, along with Consent Affidavits (Annexure A-4/5 of the application).

vi. List of 'NIL' Secured Creditors for the Demerged Company, Transferor Company No. 1, Transferor Company No. 2 (Annexures A- 1/6, A-2/6, A-3/6 of the application)

vii. List of Secured Creditors for the Transferee Company with their Consent Affidavits (Annexure A- 4/6)

viii. List of Unsecured Creditors as on 31.05.2023 of Demerged Company duly certified by the Statutory Auditors (Annexure A-1/7).

ix. List of Unsecured Creditors as on 31.05.2023 of Transferor Company No. 1 duly certified by the Statutory Auditors (Annexure A-2/7).

x. List of Unsecured Creditors as on 31.05.2023 of Transferor Company No. 2 duly certified by the Statutory Auditors (Annexure A-3/7).

xi. List of Unsecured Creditors as on 31.05.2023 of Transferee Company duly certified by the Statutory Auditors (Annexure A-4/7).

xii. Certificates of Statutory Auditors to the effect that Accounting treatment proposed in the Scheme conforms with Section 133 of the Companies Act, 2013 are attached as Annexure A-7 of the application.

xiii. Proposed Share Entitlement Ratio, provided under the Report on Valuation of Shares & Share Exchange Ratio of Ms Varunika (ACS), Registered Valuer, attached as Annexure A-5 of the application.

xiv. Audited financial statements as of 31.03.2023, of the Demerged Company, Transferor Company No. 1, Transferor Company No. 2 and Transferee Company have been annexed and marked as Annexure A-1/2, A-2/2, A-3/2 and A-4/2 respectively.

10. It is further submitted by the counsel for applicant companies that as per the Valuation Report dated 04.05.2023 submitted by Ms Varunika (ACS), Registered Valuer, IBBI Registration No. RV-SFA(IBBI/RV/03/2019/11487) attached as Annexure A-5 of the Application, that the Share Exchange and Entitlement Ratio is as given below:-

"120 (One Hundred Twenty) Equity Shares of face value of INR 10/· (Rupees Ten) each of G.R. Maintenance And Services Limited (Resulting/Transferee Company) will be issued and allotted, credited as fully paid-up, for every 100 (One Hundred) Equity Shares of face value of INR 10/- (Rupees Ten) each fully paid-up held in Techpark

Maintenance Services Private Limited (Demerged Company/Applicant No. 1).

975 (Nine Hundred and Seventy Five) Equity Shares of INR 10 (Rupees 10) each of G.R. Maintenance And Services Limited (Transferee Company) will be issued against 100 (One Hundred) Equity Shares held by the shareholder of Halwasiya Estates Limited (Transferor Company No. 1/Applicant No. 2).

1202 (One Thousand Two Hundred and Two Only) Equity Shares of INR 10 (Rupees Ten) each of G.R. Maintenance And Services Limited (Transferee Company) will be issued against 100 (One Hundred Only) Equity Shares held by the shareholders of Welldone Technology Parks Development Private Limited (Transferor Company No. 2/ Applicant No. 3)"

11. It is contended by the learned counsel that the Scheme (Annexure A 6) also takes care of the interests of the staff/workers and employees of the Transferor Companies. By Clause 6 of the Scheme, it is stated that upon the Scheme coming into effect, all staff and employees of the Transferor Company, on such date, shall be deemed to have become staff and employees of the Transferee Company based on continuity of service without any break or interruption in service, and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those applicable to them with reference to the Transferor Company.

12. The Applicants have made a categorical averment in Application that as on the date of this Application, no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under the provisions of the Companies Act, 1956, is pending against the Applicant

Companies.

13. The status of Equity Shareholders, Secured and Unsecured Creditors as also their Consent through Affidavits qua all the Companies as espoused in the Application filed by the Applicants can be summarized as below:

Company	No. of Share Holders	Consent Given %	No. of Secured Creditor	Consent Given %	No. of Unsecured Creditors	Consent Given %
	Page No.	*Page No.*	*Page No.*	*Page No.*	*Page No.*	*Page No.*
Demerged Company **Techpark Maintenance Services Private Limited**	**2**	**100%**	**0**	**0**	**2**	**100%**
Transferor Company No. 1 **Halwasiya Estates Limited**	**7**	**100%**	**0**	**0**	**2**	**99/48%**
Transferor Company No. 2 **Welldone Technology Parks Development Private Limited**	**2**	**100%**	**0**	**0**	**5**	**90.33%**
Transferee Company **G. R. Maintenance And Sevices Limited**	**7**	**100%**	**2**	**97.98 %**	**26**	**93.82%**

14. All the shareholders of the Applicant Companies have given 'No Objection' to the Scheme on their respective affidavit. Therefore, the requirement of convening the Meetings of Shareholders in respect of the Applicant Companies is dispensed with.

15. Since more than 90% in value of the Unsecured Creditors of the Applicant Companies have given 'No Objection' to the Scheme therefore, their meeting is dispensed with.

16. There are no secured creditors in Applicant Company No. 1, 2 and 3, therefore, the need to convene their meeting does not arise. Further, more than 90% in value of the secured creditors of the Transferee Company have given their consent on respective affidavits, therefore, their meetings are also dispensed with.

17. So far as the prayer for serving a notice to the various authorities as espoused in Prayer (ii), Section – 230(5) read with Section – 230(3) of Companies Act, 2013 provides for issuance of notice in case a meeting is convened. However, all the meetings are dispensed in terms of Section – 230(9) of Companies Act, 2013. Hence, there is no requirement for issuing notice to the sectoral regulators at this stage.

18. The Application is allowed in the aforesaid terms.

Sd/-	Sd/-
(SUBRATA KUMAR DASH)	**(ASHOK KUMAR BHARDWAJ)**
MEMBER (T)	**MEMBER (J)**